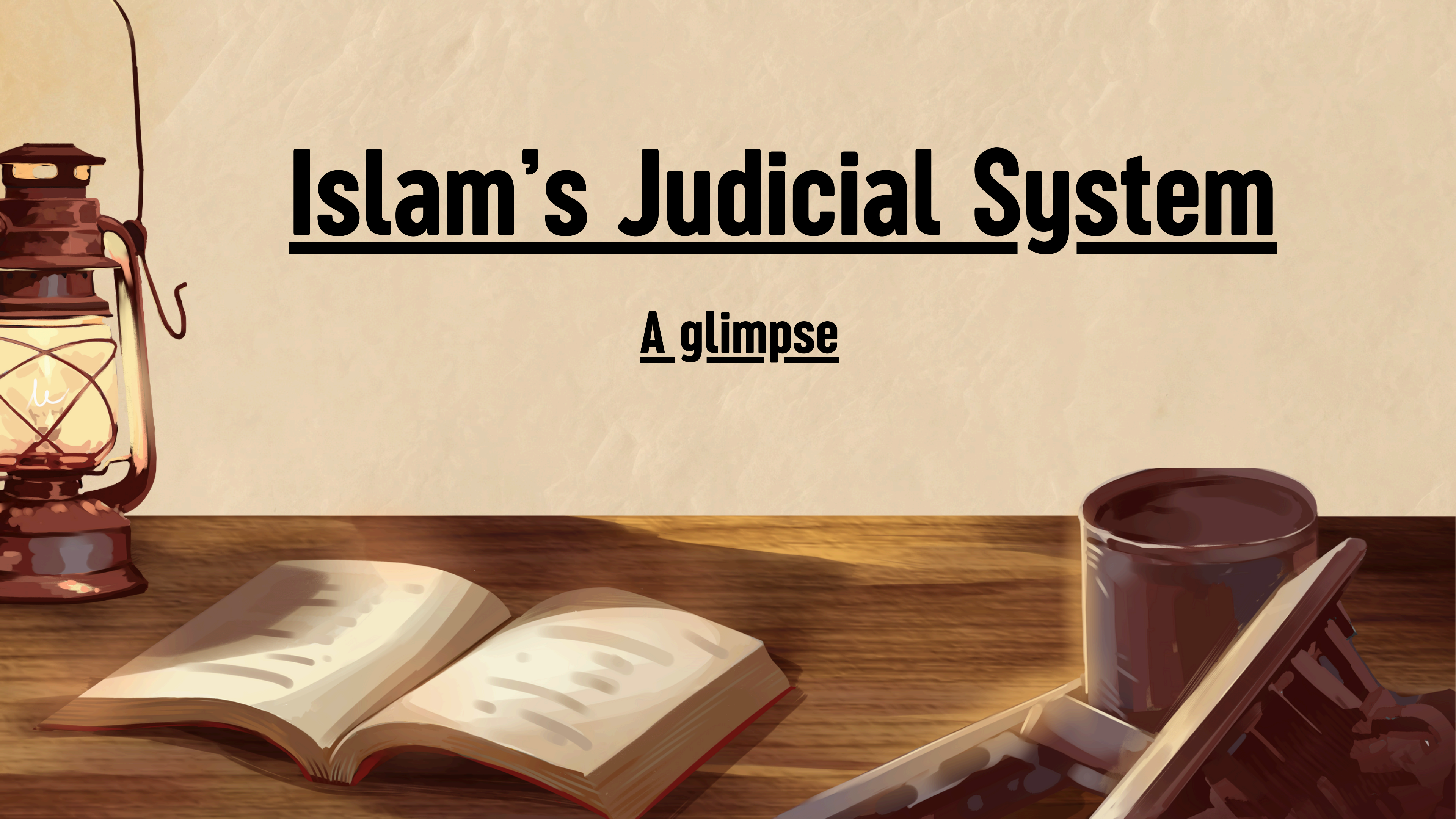


Islam's Judicial System

A glimpse





Sources of Islamic Law

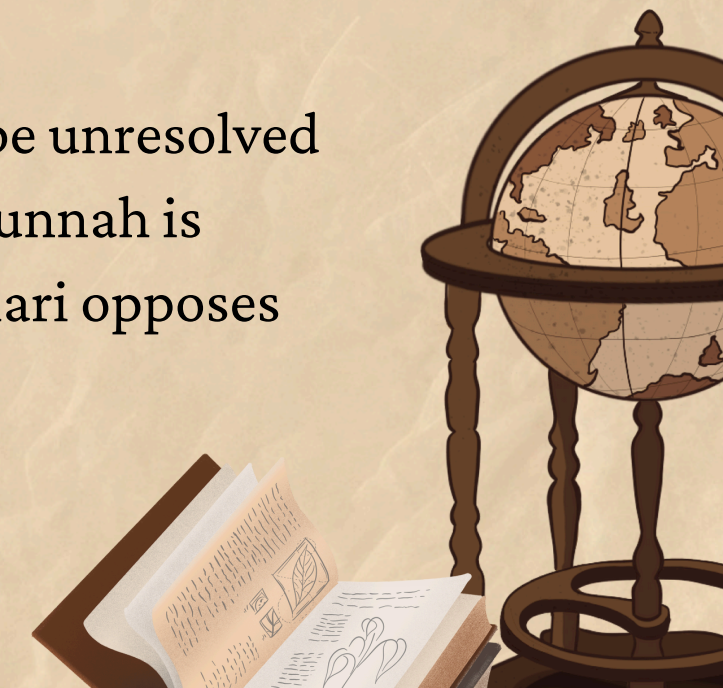
Law is order and Good Law is good Order (Aristotle)

- **The Holly Quran** : The first source of Sharia is Holly Quran. It lays emphasis on the performance of several duties, but also contains general principles of relaxation. For instance:

Allah intends ease for you, not hardship (2:185)

We task not soul beyond it's capacity (2:153)

- **The Holly Prophet**: Next source, as per Quran, is the Sunnah, the practice and the precepts of Holly Prophet Muhammad (P.B.U.H) e.g. Practical knowledge of *Salah, Zakat etc.* derived from **His** actions.
- **Ijma (Consensus)**: Ijma means the unanimous acceptance of a view or conduct as truly Islamic. It needs a group of *Mujtahideen* and systemized knowledge of *Lexicography, grammar, syntax, authentic Hadith etc.* E.g. Compilation of Quran, Principles of Islamic Finance.
- **Intelligence (Qiyas)**: Call it *intelligence* or *reasoning by analogy*. There are some issues that seems to be unresolved and finding them in Quran and Sunnah is difficult. Resolving them using intellect under Quran and Sunnah is called *Qiyas*. E.g. Punishment for drinking alcohol. However, some prominent figures like Imam Bukhari opposes the *Qiyas* while majority accept it a valid source.





Types of Islamic Law

“The more laws, the less justice (Cicero)”

Ranging from *Fiqh* (Jurisprudence) to administration, stated below are the domains where Islam enlist the laws.

1. Criminal Laws in Islam

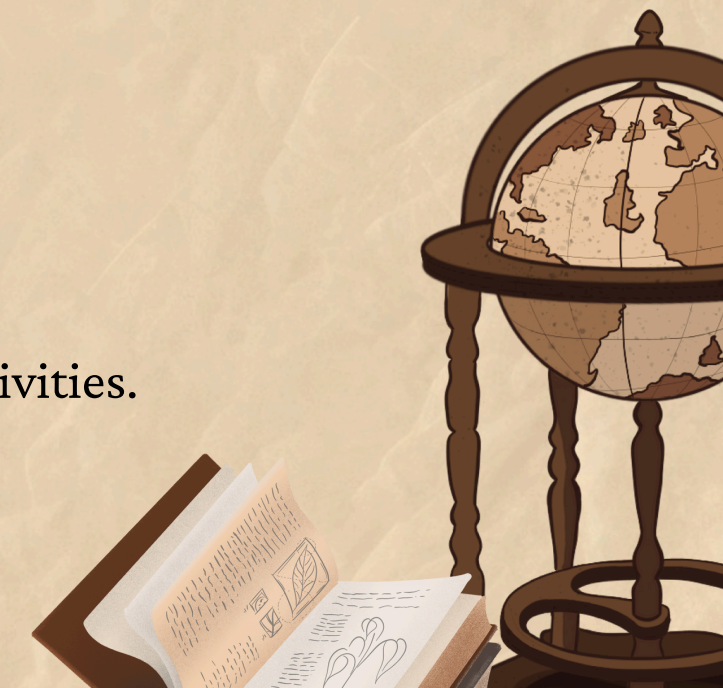
- **Hudood Laws:** Crimes and punishments explicitly outlined in Islamic texts (e.g., theft, adultery, apostasy, false accusation).
- **Tazir Crimes:** Discretionary punishments for offenses not falling under Hudood.
- **Qisas and Diyyah:** Laws of retaliation (Qisas) and compensation (Diyyah), focusing on personal injury and murder cases.
- **Preventive Measures:** The Islamic approach to preventing crime through community building and ethical conduct.

2. Family Laws in Islam

- **Marriage and Divorce:** Legal aspects of marriage contracts (Nikah), rights of spouses, and the process of divorce (Talaq).
- **Inheritance:** Distribution of inheritance according to Shariah (Faraid), with specific shares for family members.
- **Guardianship and Custody:** Laws regarding child custody and guardianship under Islamic law.

3. Commercial Laws (Muamalat)

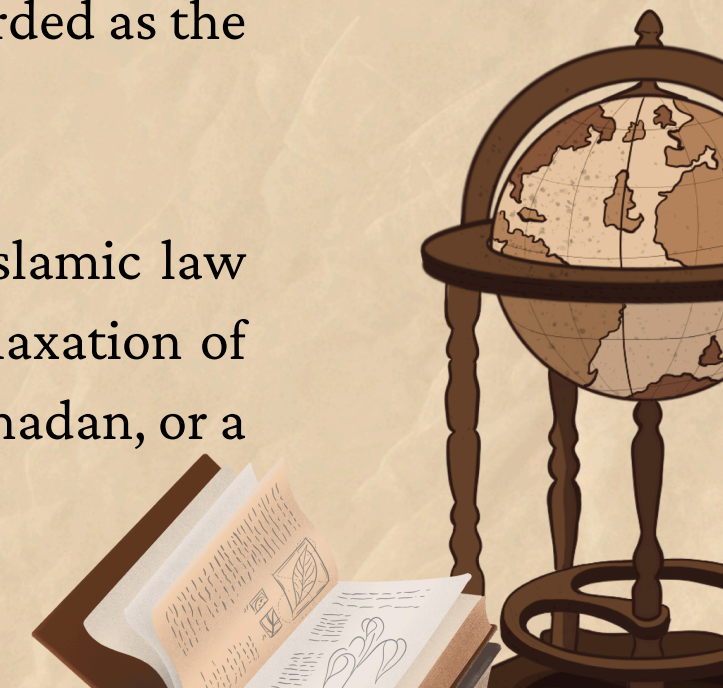
- **Riba (Usury/Interest):** The prohibition of charging or paying interest on loans.
- **Gharar (Uncertainty):** The prohibition of excessive uncertainty or ambiguity in transactions.
- **Maysir (Gambling):** The prohibition of gambling or speculative transactions.
- **Halal and Haram in Trade:** Ensuring that all business and transactions do not involve prohibited (haram) goods or activities.



General Characteristics



- **Sovereignty**: In the Muhammadan system of Law, sovereignty belongs to Allah only and He has delegated to the people power of legislation. It is a universal law advocating justice, equality, equity, freedom etc.
- **Written constitution**: Interesting and inspiring, the first revelation praises the use of pen. There was a written constitution having 52 clauses prepared by Prophet Muhammad (cf Ibn Hisham).
- **To non-Muslims, Territorial**: If a non-Muslim resides in a Muslim state, the secular portion of legal code would apply to him. For instance, a non-Muslim drinking alcohol is not subjected to punishment. It portrays the freedom of a non-Muslim living under Muhammadan law.
- **Sanctions**: Muhammadan law has two-fold objects, spiritual and social good, it's policy is to encourage obedience and discourage disobedience. The concept of *Iqab*, *adhab* and *reward* are in such regards.
- **Public and private laws**: The rights of God (حقوق الله), and the rights of men (حقوق العباد), the former (حقوق الله) corresponding to the rights of public and the latter (حقوق العباد) to private rights. For instance, Zakat is regarded as the right of God but for the benefit of public.
- **Strict and modified laws**: Strict laws (عزيمت) refers to the strict, rigorous, or standard application of Islamic law without any concessions or relaxations while the modified laws (رخصت) refers to the dispensation or relaxation of certain legal requirements in cases of necessity. E.g. allowance for a sick person to break their fast during Ramadan, or a traveler to shorten their prayers (Qasr) during a journey



School of Thoughts



Hanafi School

- Founder: Imam Abu Hanifa (699-767 CE)
- Geographical Influence: Predominantly followed in South Asia (India, Pakistan, Bangladesh), Turkey, the Balkans, Central Asia, and parts of the Arab world.
- The Hanafi school is considered the most flexible and liberal in matters of jurisprudence.

Maliki School

- Founder: Imam Malik ibn Anas (711-795 CE)
- Geographical Influence: Predominantly followed in North and West Africa, parts of the Arabian Peninsula (e.g., Medina).
- Focuses heavily on the practice of the people of Medina as a primary source of law, considering it an important reflection of the Prophet Muhammad's (PBUH) way of life

Shafi'i School

- Founder: Imam Muhammad ibn Idris al-Shafi'i (767-820 CE)
- Geographical Influence: Predominantly followed in East Africa, Southeast Asia (Indonesia, Malaysia), parts of the Arabian Peninsula (e.g., Yemen).
- Emphasizes a strict method of collecting and verifying Hadith and relies heavily on Quran and Hadith as primary sources

Hanbali School

- Founder: Imam Ahmad ibn Hanbal (780-855 CE)
- Geographical Influence: Predominantly followed in Saudi Arabia and parts of the Arabian Peninsula.
- The Hanbali school is often regarded as the most conservative in terms of legal rulings.





Challenges of Islamic Law

Despite the many positive aspects of Islamic Law, there are also challenges in implementing it in the modern world. Some of these challenges include:

- **Differences in Interpretation/Sectarian Differences**

Islamic law, like other religions, can be interpreted differently by different Muslim scholars and countries. It means that there is no single standard for the application of international law based on Islam

- **Conflict with Secular International Law**

Sometimes, the principles of Islamic Law conflict with international law administered by organizations such as the United Nations. For example, human rights issues related to religious freedom and women's rights are often debated in international forums. Despite the fact that these rights are described in Islam, it is a fact that there is violation of these rights observed in Muslim countries.

- **Modernization and Secularization**

Many Muslim countries are undergoing a process of secularization and modernization, where Islamic law is becoming less relevant in national legal systems. It poses a challenge to how international Islamic law can be applied consistently.

- **Misuse by Political Regimes**

Some governments or political regimes misuse or manipulate Islamic law to justify authoritarian practices or maintain control, often by selectively applying Shariah to target certain groups or political opponents.

